

her death before either attaining twenty-one or marrying under that age, and mortgaging the policy and charging the infant's contingent interest to secure the necessary advances and compound interest, but it was expressly

* provided that the interest of any person other than [*588] the infant was not to be affected (a).]

36. **Advancement out of capital.**—A part of the capital may be sunk by a trustee without the direction of the Court for the *advancement* of a child, where the same sums if expended for *maintenance* would not have been allowed (b).

37. **Advancement when there is a limitation over.**—But a trustee cannot apply part of the principal towards the advancement of the child where the legacy is subject to a limitation over in favour of a stranger, for in such a case the Court itself could not make an order to that effect.

Thus in *Lee v. Brown* (c), where a testatrix gave 100*l.* to trustees upon trust to apply the produce to the maintenance and education of A. B., and when he should attain twenty-one to transfer to him the capital, but in case he died under

[*(a)* *Re Bruce*, 30 W. R. 922; and see *Re Tanner*, 53 L. J. N. S. Ch. 1108; 51 L. T. N. S. 507, as to adopting a similar course for securing the other persons interested where an advance is required for an infant whose interest is only contingent.]

(b) *Swinnock v. Crisp*, Freem. 78; *Walker v. Wetherell*, 6 Ves. 477; and see *Ex parte M'Key*, 1 B. & B. 405. As to what purposes will fall under the description of advancement, see *Boyd v. Boyd*, 4 L. R. Eq. 305; *Roper-Curzon v. Roper-Curzon*, 11 L. R. Eq. 452; *Re Gore's Settlement Trusts*, W. N. 1876, p. 79; *Taylor v. Taylor*, 20 L. R. Eq. 155. In the last case an advancement by way of *portion* was said to be something given by a parent to establish his child in life, a provision for him, and not a casual payment. Under portions would be ranked the following, viz. sums advanced on *marriage*, on setting up a child in *business* or putting him into a *profession*, buying the *goodwill* of a

business and giving *stock-in-trade*, or supplying *further capital* for carrying on the business, or paying the *entrance fee* to an *Inn of Court* with a view to the Bar, or buying a *commission* and providing the *outfit*. So a *large sum* given to a child in *one payment* might be presumed in the absence of evidence to be an advancement by way of *portion*. But the qualities of a *portion* would not attach to *small sums* paid by a father to a child whether an infant or adult, or to *temporary assistance* in the discharge of his debts, or to payment of his *travelling expenses*, as a passage to India, or to the payment of a *fee* to a *special pleader*, which would come rather under preliminary education than advancement. But in the case of *Re Blockley*, 29 Ch. D. 250, Pearson, J., dissented from the view that a sum given by a father to his son to enable him to pay his debts could not be treated as an advancement.

(c) 4 Ves. 362.